

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD. ,

RESPONDENT.

JOINT STATUS REPORT

Pursuant to the November 21, 2025, Second Amended Scheduling Order (“Scheduling Order”), Complainant, Samsung Electronics America, Inc. (“SEA”) and Respondent, HMM Co., Ltd. (“HMM”) (each a “Party” and collectively the “Parties”) submit this Joint Status Report. The Scheduling Order asks that the Parties report on (1) the progress of discovery, (2) any technical challenges related to completing discovery, and (3) any unresolved disputes or other incomplete discovery. Categories (1) and (3) are addressed below, and there are no technical challenges related to Category (2). The Parties, by their respective undersigned counsel, have conferred and endeavored to resolve any disagreements related to discovery, but a limited number of disputed

issues remain outstanding. In light of this, the Parties appear to be at an impasse on certain issues and a motion to compel may be necessary.

Category 1: The Progress of Discovery

a. Documents Produced:

SEA completed its production of documents; its last production of documents was Wednesday, January 14, 2026 (Bates range SEA_HMM-3222306-SEA_HMM-3240784). The total number of documents produced by SEA in response to HMM's discovery requests is 609,624, equating to 3,230,784 pages. HMM has, other than materials that will be covered by a joint confidentiality stipulation and order which will be produced after the stipulation is entered, completed its production of documents; its last production was January 15, 2026 and comprised 189,183 pages. The total number of documents produced by HMM in response to SEA's discovery requests is 144,538 equating to 1,134,553 pages.

b. Depositions:

SEA issued nineteen fact witness deposition notices and one 143(b)(6) corporate deposition notice on January 9, 2026, and is ready to proceed with taking depositions once the fact deposition period begins on January 16, 2026. SEA also provided HMM with a detailed proposed deposition plan, subject to witness availability, which runs through the last week of the deposition period. Certain depositions will be in person, while others will be taken remotely. SEA has requested HMM confirm the location of certain witnesses (in the United States, Korea, and elsewhere), so that the respective deposition notices can be amended and tailored to the agreed date, location, and method. After receiving this information, SEA will verify which depositions are scheduled to occur remotely and which will take place in person.

In the September 2025 Joint Status Report, SEA stated it would notice approximately 10 depositions. After reviewing HMM's documents, the majority of which were produced after September 2025, SEA has amended its anticipated depositions accordingly. HMM is checking witness availability for the dates provided by SEA. HMM has not issued depositions notices for SEA witnesses to date, but is concerned that taking approximately 30 fact witness depositions in 60 calendar days is not realistic.

Finally, the Parties have a draft joint motion for a protective order and are finalizing same.

Category 3: Unresolved Disputes or Other Incomplete Discovery

The Parties have identified four categorical areas of dispute between SEA and HMM, which are being addressed: (1) pre-2020 policies and procedures (SEA issue with HMM); (2) HMM financial information (SEA issue with HMM); (3) third-party invoices (SEA issue with HMM); and (4) the identification of the cause of all alleged delay relating to the retrieval and return of containers, and specific allegations of how HMM caused or contributed to the delays alleged in the Verified Amended Complaint (HMM and SEA issues with each others productions). The Parties have exchanged correspondence on these points, but have not been able to resolve these discovery disputes. The disputes concerning these limited issues will not delay commencement of the deposition phase, and the Parties will continue to work on resolution of same in an effort to avoid motion practice.

In an effort to resolve the disputes over incomplete discovery, SEA identified fourteen areas in HMM's document production which appear incomplete or where HMM has stated it would produce documents but has not to date. With today's deadline for completion of document production, SEA will review HMM's recent productions, which may well resolve the outstanding disputes. But at the time of filing this JSR, SEA cannot confirm the completeness of HMM's

document production. The parties are also awaiting discovery of documents from non-party Lotte Global Logistics North America, Inc. (“Lotte”) in response to the Presiding Officer’s subpoena dated December 3, 2025. To date, Lotte has produced 170 documents in response to the subpoena, and identified three employees who can testify to matters subject to the subpoena.

Conclusion

The parties have made progress concerning discovery following the last conference with the Presiding Officer and will proceed with the fact deposition phase.

Respectfully Submitted,

Dated: January 16, 2026

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